

b) Wrong assessment of prior art or technical content

According to the established jurisprudence of the boards of appeal, a misinterpretation of a document normally constitutes an error of judgment rather than an error of law and is therefore no "procedural" violation, let alone a substantial one (T 1031/12). In T 162/82, OJ 1987, 533, the board held that an error in interpreting a document could not possibly be regarded as a procedural violation (see also T 1049/92, T 976/11).

In T 367/91 the board stated that to base a decision only on a wrong assessment of prior art and/or the claimed invention had to be regarded as a substantive error, not a procedural violation (see also T 144/94, T 12/03, T 1340/10, T 997/15). In T 68/08 the board held a wrong assessment of the claimed invention (or of the prior art) would always be a substantive issue.

In T 17/97 the appellant's request for reimbursement of the appeal fee was based on the fact that the opposition division had disregarded a document. In the board's judgment an erroneous assessment of the relevance of a document did not, by its very nature, constitute a procedural violation within the meaning of R. 67 EPC 1973.

The misinterpretation of a document does not constitute a procedural violation (T 1049/92; T 162/82, OJ 1987, 533; T 1031/12). In T 588/92 the board pointed out that a different opinion on the specialist knowledge to be applied when interpreting the technical content did not amount to a procedural violation.

In T 860/93 (OJ 1995, 47) the board found that that even though there had been a gross error of judgement on the part of the examining division there was no procedural non-compliance of the kind which was a condition precedent to R. 67 EPC 1973 taking effect.

In T 863/93 the board held that it was the established jurisprudence of the Boards of Appeal that in order to fall within R. 67 EPC 1973 a procedural violation as opposed to an error of judgment must have occurred. It concluded that the issue raised by the appellant, i.e. the examining division's misunderstanding of D1, was a matter of judgment which did not justify the reimbursement of the appeal fee.

In T 970/10 the board held that an incorrect assessment of a document with regard to its date of availability to the public related to a factual error in respect of the substantive requirements under Art. 54(2) EPC, and not to an error in respect of procedural law.

In T 976/11 the board disagreed that the change of the closest prior art alone could constitute a substantial procedural violation. It held that an examining division had the procedural discretion to revise its objection of inventive step, including the choice of the closest prior art, at any stage of the examination proceedings, including the oral proceedings.

In T 658/12 the board held that an insufficiently reasoned decision had to be distinguished from a decision that had faulty or unpersuasive reasoning. The board concluded that while the COMVIK-approach may have been incorrectly applied in the case in hand, this was a

substantive issue, only involving judgement. Thus, the board found that the decision was reasoned in the sense of R. 111(2) EPC. The board also found that the examining division had not acted unreasonably, as claimed by the appellant (applicant), by not admitting the second auxiliary request. The board held, therefore, that there was no basis for reimbursement of the appeal fee (see also T. 690/06).

In T. 680/89 the board found that it did not amount to a procedural violation if the examining division wrongly finds that a claim is not sufficiently clear to comply with the requirements of Art. 84 EPC 1973, even where there has been a possible error of judgment and failure to seek clarification from the appellant. It concluded there was no basis for ordering reimbursement of the appeal fee in accordance with R. 67 EPC 1973.

c) Error in the application of the law

In T. 687/05 the board held that the fact that the decision under appeal was based on an incorrect interpretation of Art. 100(c) EPC 1973 did not constitute a "procedural" violation, but was simply an error in the application of the law (see also J. 8/13 and T. 378/14).

d) Board reaches a different conclusion than the department of first instance

The fact that a board comes to a different conclusion from the department of first instance does not by itself mean that the latter has committed a substantial procedural violation within the meaning of R. 103(1)(a) EPC (R. 67 EPC 1973), which would necessitate reimbursement of the appeal fee (T. 87/88, OJ 1993, 430; see also T. 538/89; T. 182/92; J. 14/12; T. 203/15; T. 997/15).

In T. 182/92 the board stated that the fact that the first instance reached a conclusion regarding the document of priority which could not be confirmed by the board was a matter of interpretation of a document, i.e. a matter of judgement, which could not amount to a procedural violation.

e) Exercising of discretion

In T. 208/00 the board considered that the department of first instance had to be granted a certain degree of latitude in exercising its power of discretion, which, in the case in hand, it had not overstepped in a clearly inappropriate manner. It stated that it was not equitable to reimburse the appeal fee, especially as under the established case law of the boards of appeal (see T. 860/93) not even "a gross error of judgment" by the department of first instance was regarded as justifying such reimbursement.

In T. 248/00 the board decided that, where a late submission was not admitted, an irregularity had taken place if the department had exercised its discretion incorrectly, that is to say on the basis of irrelevant or arbitrary considerations (see also T. 1651/10). The board held that, even if the non-admission might ultimately prove to be incorrect, such application of the law did not amount to a substantial procedural violation. The issue was, rather, whether the opposition division's discretion had been incorrectly exercised in not admitting a late-filed request.

In T.2249/08 the board held that it was apparent that the opposition division had exercised its discretion to disregard "facts and evidence" presented belatedly, i.e. after a final date in preparation for oral proceedings. It stated that such discretionary decisions were not normally subject to review, unless the decision was based on the wrong principles or was otherwise manifestly unreasonable. Thus any finding of a substantial procedural violation through a discretionary decision also presupposed such grave errors, as opposed to mere errors of judgement.

f) Wrong procedure adopted

Normally there is no procedural violation justifying reimbursement of the appeal fee if the wrong procedure is adopted in a situation where the EPC does not lay down clearly what procedure is to be followed and the case law has not yet established any settled practice (T.234/86, OJ 1989, 79).

g) Following earlier decisions

In T.208/88 (OJ 1992, 22) the board held that taking a different line from an isolated appeal decision – as opposed to established board of appeal case law – could not be regarded as a substantial procedural violation.

In T.494/07 the board held that if two apparently similar case constellations were decided differently, this could at most be regarded as an error of judgment. In the case at issue, the board held that not following an earlier board decision did not constitute a substantial procedural violation.

In T.875/98 the board noted that the Convention did not contain any rule of procedure which imposed on an opposition division an obligation to abide by a decision in a different case. It held that a single decision did not establish a "case law" which had to be adhered to in another opposition case, even if the subject-matter of the two respective cases was closely related.

11.6.11 Cases concerning the decision-making process and the decision

a) Issuing of decision

(i) Issuing of decision before expiry of time-limit to comment

In T.804/94 the board ruled that there had been a substantial procedural violation as the opposition division had issued a decision rejecting the opposition before **expiry of the four-month period** it had set for responding to its communication (see also T.663/99; see also chapter III.B.2.5.2).

(ii) Excessive length of proceedings

In T 900/02 the board found that the extreme length of the delay – three years and seven months – between oral proceedings and the issue of a written decision amounted to a substantial procedural violation.

In T 358/10 the board found that sending the minutes 19 months after the oral proceedings had taken place and notifying the decision 22 months after its pronouncement at the end of those proceedings were inherently unacceptable procedural violations which, by themselves, sufficed to justify refunding the appeal fee (see also T 243/87, T 563/11). In T 2340/13 the length of time between the oral proceedings and issuing of the minutes and written decision of the opposition division was 13 months and 14.5 months respectively. The board noted, with reference to T 358/10, that even if this delay by itself were not considered to be a substantial procedural violation, it plausibly contributed to the other procedural violations (see in this chapter V.A.11.6.9).

In T 823/11 the board considered the duration of the proceedings before the department of first instance of more than twelve years after entry into the European phase as excessive. According to the board, in T 315/03 even a shorter delay of ten years in a much more complex opposition case had amounted to a substantial procedural violation. The board also referred to the judgment of the European Court of Human Rights in *Kristiansen and Tyvik AS v. Norway* (application No. 25498/08), in which the examination and (administrative) appeal proceedings of a patent application had taken a total of eighteen years. Taking into account the duration of patent protection of twenty years, the Court had found "the length of the administrative proceedings before the patent authorities" to be excessive because it "in effect rendered meaningless any exercise by them [the applicants] of their right of access to a court". See also T 1243/17.

In T 1824/15 the board noted that the reasons for decision T 823/11 did not explain why the delays in the examination procedure could not be justified by the particular circumstances of the case. Moreover, T 823/11 did not explain how its reasoning was in line with that of the cited ECtHR decision, in particular why circumstances leading to a finding of a violation under Art. 6(1) ECHR would necessarily lead to a finding of a substantial procedural violation under R 103(1)(a) EPC. In the case in hand the examining division had been entitled to raise the new objection so late in the first-instance proceedings. Members of an examining division were free to change their minds at any point in the procedure, including during oral proceedings, as long as the requirements of Art. 113(1) EPC were fulfilled. The board held that the over eleven year delay in raising of the objection based on D3 had led to neither a fundamental deficiency under Art. 11 RPBA 2007 nor a substantial procedural violation. With regard to the time taken by the examining division to issue the written decision and the minutes, the board found that the delay of seven months was not a procedural violation of any sort, let alone a substantial one, and also not a fundamental deficiency under Art. 11 RPBA 2007. The request for reimbursement of the appeal fee was therefore rejected.

In T 1131/12 the board stated that, although a delay of five years between a last communication and the written decision would be wholly unacceptable, there was no

causal link between this excessive delay and the outcome of the examining division's decision. Moreover, the appellant had only filed and substantiated the request for reimbursement shortly before the oral proceedings. For these reasons, the board refused the reimbursement request under Art. 12(1)(a) and (2) RPBA 2007.

In T 2707/16 the contested refusal decision was taken more than fourteen years after the filing date. The board found that the excessive delays, in particular the lapse of more than seven years before the second substantive communication was sent out, constituted a procedural violation. The board argued that the violation was also substantial because the severe delays had the consequence that the first-instance decision was taken much later than it would have been without the procedural deficiencies. Thus, they had an impact on an essential element of the decision, namely its date ("justice delayed is justice denied"). However, the board was of the opinion that a reimbursement of the appeal fee in the circumstances should be regarded as equitable only where the applicant has made clear by some action that he did not tacitly agree with the stagnation of the proceedings. The board found the appellant failed to provide any such signal for a very long period of time and therefore refused the request for reimbursement.

In T 2377/17 the board found the delay of 14 years before the examining division issued its first substantive communication to be a substantial procedural violation. The board noted that the appellant had remained inactive for over 12 years before it requested accelerated examination, but the Examining Division then still did not succeed in issuing a communication within the period of six months to which it had committed; instead, it required close to two more years. After the appellant filed a timely reply, it again took more than 18 months - and a second request for accelerated examination, again leading the Examining Division to commit itself to a date it ultimately did not keep - before the Examining Division issued the summons to oral proceedings. Contrasting the applicant's attempts to move the case forward with those of the applicant in T 2707/16, in which the same board found the reimbursement of the appeal fee not to be equitable because the applicant there had taken insufficient action to try to move the proceedings forward, and noting the periods of unjustified delay that occurred despite the appellant's attempts to move the case forward, the board considered reimbursement of the appeal fee to be equitable in the case in hand.

In T 2699/17 the board agreed with the appellant (applicant) that a total processing time of more than 12 years (from filing of the application to the decision to refuse the application) was by far above the average, but found that although undesirably long, the duration of the case did not amount to a substantial procedural violation. Unlike in T 2707/16, in which there was a long period of stagnation, in the case in hand the examining division regularly returned to the case and addressed various issues of substance, which the appellant promptly addressed. During prosecution of the case, the decision in G 1/07 (OJ 2011, 134) was also issued, which was highly pertinent to the application. The board was also unable to see why the appellant waited until the appeal stage to voice its concerns instead of making use of the PACE programme, which gives applicants a convenient tool to speed up the pace at which the proceedings are progressing.